



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2494: certificate; environmental compatibility; zoning; exemption

TAYLOR FLOOR AMENDMENT

1. Allows a utility to replace an existing plant or construct a new plant immediately adjacent to an existing plant without a new CEC for the new or replacement plant if:
 - a. the utility provides the ACC 30 days' written notice;
 - b. holds at least one public comment session in the county where the existing plant is located;
 - c. the new or replacement plant is located on or immediately adjacent to the site of a plant that:
 - i. previously received a CEC; or
 - ii. was in use or authorized before August 13, 1971;
 - d. the aggregate nameplate rating of all plants that will be located on or adjacent to the site, after construction, will be equal to or greater than the aggregate nameplate rating of all existing plants located on or adjacent to the site before construction. (Sec. 2)
2. Makes conforming change (Sec. 2)

TAYLOR FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2494
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-812, Arizona Revised Statutes, is amended to
3 read:

4 11-812. Restriction on regulation; exceptions; aggregate
5 mining regulation; definitions

6 A. ~~Nothing contained in~~ Any ordinance authorized by this chapter
7 ~~shall~~ MAY NOT:

8 1. Affect existing uses of property or the right to its continued
9 use or the reasonable repair or alteration of the property for the purpose
10 for which used at the time the ordinance affecting the property takes
11 effect.

12 2. Prevent, restrict or otherwise regulate the use or occupation of
13 land or improvements for railroad, mining, metallurgical, grazing or
14 general agricultural purposes, if the tract concerned is five or more
15 contiguous commercial acres. For the purposes of this paragraph:

16 (a) "General agricultural purposes" includes agritourism as defined
17 in section 3-111, but does not include any of the following:

18 (i) Food establishments **THAT ARE** under the authority of the
19 department of health services pursuant to section 36-136, subsection I **AND**
20 that are associated with an agritourism business.

21 (ii) Rodeo events that are open to the general public and that sell
22 tickets for admission. For the purposes of this item, rodeo events do not
23 include generally accepted agricultural practices associated with
24 livestock and equine operations.

25 (iii) The cultivation of cannabis as defined in section 13-3401 or
26 marijuana as defined in section 13-3401 or 36-2801.

27 (b) "Mining" has the same meaning prescribed in section 27-301.

1 3. Prevent, restrict or otherwise regulate the use or occupation of
2 land or improvements for agricultural composting, if the tract is five or
3 more contiguous commercial acres. An agricultural composting operation
4 shall notify in writing the board of supervisors and the nearest fire
5 department of the location of the composting operation. If the nearest
6 fire department is located in a city, town or fire district where the
7 agricultural composting is not located, the agricultural composting
8 operation shall also notify in writing the fire district in which the
9 operation is located. Agricultural composting is subject to sections
10 3-112 and 49-141. For the purposes of this paragraph, "agricultural
11 composting" has the same meaning prescribed in section 9-462.01,
12 subsection G.

13 4. Prevent, restrict or otherwise regulate the otherwise lawful
14 discharge of a firearm or air gun or use of archery equipment on a private
15 lot or parcel of land that is not open to the public on a commercial or
16 membership basis.

17 5. PREVENT, RESTRICT OR OTHERWISE REGULATE THE USE OR OCCUPATION OF
18 LAND OR IMPROVEMENTS FOR THE CONSTRUCTION AND OPERATION OF A THERMAL OR
19 NONTHERMAL ELECTRIC GENERATING UNIT IF THE OWNER OR OPERATOR OF THE
20 ELECTRIC GENERATING UNIT HAS APPLIED FOR AND RECEIVED A CERTIFICATE OF
21 ENVIRONMENTAL COMPATIBILITY FOR THE PROPOSED ELECTRIC GENERATING UNIT FROM
22 THE POWER PLANT AND TRANSMISSION LINE SITING COMMITTEE, AND THE
23 CERTIFICATE IS AFFIRMED AND APPROVED BY AN ORDER OF THE CORPORATION
24 COMMISSION PURSUANT TO TITLE 40, CHAPTER 2, ARTICLE 6.2. THE OWNER OR
25 OPERATOR OF A NONTHERMAL ELECTRIC GENERATING UNIT MAY VOLUNTARILY APPLY
26 FOR A CERTIFICATE OF ENVIRONMENTAL COMPATIBILITY PURSUANT TO THIS
27 PARAGRAPH.

28 B. A nonconforming business use within a district may expand if the
29 expansion does not exceed one hundred ~~per cent~~ PERCENT of the area of the
30 original business.

31 C. For the purposes of subsection A, paragraph 2 of this section,
32 mining does not include aggregate mining operations in an aggregate mining
33 operations zoning district established pursuant to this section. The
34 board of supervisors of any county with a population of more than two
35 million persons shall designate and establish the boundaries of an
36 aggregate mining operations zoning district on the petition of at least
37 one hundred persons who reside within one-half mile of an existing
38 aggregate mining operation. In addition, the board of supervisors of any
39 county may establish, in its discretion and on the board's initiative, one
40 or more aggregate mining operations zoning districts. Aggregate mining
41 operations zoning districts may only be located in areas that are
42 inventoried and mapped as areas of known reserves or in areas with
43 existing aggregate mining operations. Subject to subsections E and F of
44 this section, a county and the state mine inspector may jointly adopt, as
45 internal administrative regulations, reasonable aggregate mining
46 operations zoning district standards limited to permitted uses, procedures
47 for approval of property development plans and site development standards

1 for dust control, height regulations, setbacks, days and hours of
2 operation, off-street parking, screening, noise, vibration and air
3 pollution control, signs, roadway access lanes, arterial highway
4 protection and property reclamation for which aggregate mining operations
5 are not otherwise subject to federal, state or local regulation or a
6 governmental contractual obligation. Regulations **THAT ARE** jointly adopted
7 pursuant to this subsection by the county and the state mine inspector
8 shall not prohibit the activities included in the definition of mine
9 pursuant to section 27-301, paragraph 8 or duplicate, conflict with or be
10 more stringent than applicable federal, state or local laws.

11 D. The board of supervisors of any county that establishes an
12 aggregate mining operations zoning district shall appoint an aggregate
13 mining operations recommendation committee for the district. The
14 committee consists of not more than seven operators, or representatives of
15 operators, of active aggregate mining operations in any district within
16 the county and an equal number of private citizens, who are not operators,
17 who are not employed by operators and who do not represent operators,
18 residing within three miles of the boundaries of aggregate mining
19 operations or a proposed aggregate mining operation in the district for
20 which the committee is established. The initial members appointed to the
21 committee shall be deemed the primary members, and the board of
22 supervisors shall appoint not more than five alternate members who
23 represent operators and shall appoint not more than five alternate members
24 who are private citizens. Alternate members may serve at meetings of the
25 committee when a primary member is unable to attend. An aggregate mining
26 operator may serve on more than one committee in the same county. The
27 board of supervisors shall determine the length of terms of members of the
28 committee and shall stagger the initial appointments so that not all
29 members' terms expire at the same time. Members of the committee who no
30 longer qualify for membership as provided by this subsection are subject
31 to removal and replacement by the board of supervisors. The committee
32 shall elect a member who is an aggregate mining operator to serve as
33 chairperson for the first year in which the committee is created. For
34 each year thereafter, the chairperson shall be elected by the members of
35 the committee with a member who is a private citizen and a member who is
36 an aggregate mining operator serving as chairperson in alternate years.
37 The committee is subject to the open meeting requirements of title 38,
38 chapter 3, article 3.1.

39 E. Within ninety days after an aggregate mining operations
40 recommendation committee is established, the committee shall notify all
41 existing aggregate mining operators in the district of the application of
42 this section and title 27, chapter 3, article 6 to the aggregate mining
43 operation. In addition, the committee shall:

44 1. By a majority vote of all members make recommendations to the
45 board of supervisors for aggregate mining zoning districts and
46 administrative regulations as provided in this section. The board of
47 supervisors may adopt or reject the recommendations but may not make any

1 modifications to the recommendations unless the modification is approved
2 by a majority of the members of the recommendation committee.

3 2. Serve as a forum for mediation of disputes between members of
4 the public and aggregate mining owners or operators. If the committee is
5 unable to resolve a dispute, the committee shall transmit the matter to
6 the state mine inspector, with written findings and recommendations, for
7 further action.

8 3. Hear written complaints filed with the state mine inspector
9 regarding alleged material deviations from approved community notices for
10 aggregate mining operations and make written recommendations to the state
11 mine inspector pursuant to section 27-446.

12 F. Any administrative regulations adopted by a board of supervisors
13 pursuant to this section are not effective until the regulations are
14 approved by the state mine inspector. The STATE MINE inspector may
15 disapprove the administrative regulations adopted by the board of
16 supervisors only if they duplicate, conflict with or are more stringent
17 than applicable federal, state or local laws, rules or regulations. If
18 the STATE MINE inspector disapproves the administrative regulations, the
19 STATE MINE inspector must provide written reasons for the disapproval.
20 The STATE MINE inspector shall not make any modification to the
21 administrative regulations as adopted by the board of supervisors unless
22 the modification is approved by a majority of the members of the board of
23 supervisors.

24 G. A person or entity is subject to this chapter if the use or
25 occupation of land or improvements by the person or entity consists of or
26 includes changing, remanufacturing or treating human sewage or sludge for
27 distribution or resale. These activities are not exempt from this chapter
28 under subsection A, paragraph 2 of this section.

29 H. A county shall not require as a condition for a permit or for
30 any approval, or otherwise cause, an owner or possessor of property to
31 waive the right to continue an existing nonconforming outdoor advertising
32 use or structure without acquiring the use or structure by purchase or
33 condemnation and paying just compensation unless the county, at its
34 option, allows the use or structure to be relocated to a comparable site
35 in the county with the same or a similar zoning classification, or to
36 another site in the county acceptable to both the county and the owner of
37 the use or structure, and the use or structure is relocated to the other
38 site. The county shall pay for relocating the outdoor advertising use or
39 structure, including the cost of removing and constructing the new use or
40 structure that is at least the same size and height. This subsection does
41 not apply to county rezoning of property at the request of the property
42 owner to a more intensive zoning district.

43 I. For the purposes of this section:

44 1. "Aggregate" has the same meaning prescribed in section 27-441.

45 2. "Aggregate mining" has the same meaning prescribed in section
46 27-441.

1 3. "Aggregate mining operation" means property that is owned,
2 operated or managed by the same person for aggregate mining.

3 4. "Operators" means persons who are actively engaged in aggregate
4 mining operations within the zoning district or proposed zoning district
5 and who have given notice to the state mine inspector pursuant to section
6 27-303.

7 <<Sec. 2. Section 40-360.03, Arizona Revised Statutes, is amended
8 to read:

9 40-360.03. Application for certificate of environmental
10 compatibility before construction of facilities;
11 electronic format; rules; exception

12 A. Except as provided in ~~[subsection]~~ [SUBSECTIONS] B ~~[AND C]~~ of
13 this section, every utility that plans to construct a plant or
14 transmission line, or both, in this state shall first file with the
15 commission an application for a certificate of environmental
16 compatibility. The application shall be in a form prescribed by the
17 commission and shall be accompanied by information with respect to the
18 proposed type of facilities and description of the site, including the
19 areas of jurisdiction affected and the estimated cost of the proposed
20 facilities and site. The application shall also be accompanied by a
21 receipt that evidences payment of the appropriate fee required by section
22 40-360.09. The commission shall promptly refer the application and
23 accompanying information to the chairman of the committee for the
24 committee's review and decision. The application and accompanying
25 information may be submitted to the commission in an electronic format.
26 The commission may adopt rules to accept electronic filings under this
27 section and to ensure that proper notice is provided electronically to
28 interested parties.

29 B. A utility may replace a conductor or wire on a transmission line
30 or may replace an existing transmission line structure or structures with
31 a new transmission line structure or structures without seeking a new
32 certificate of environmental compatibility and without holding a hearing
33 under this article if the replacement is on a transmission line that
34 previously received a certificate of environmental compatibility or that
35 was in use or authorized before August 13, 1971. All replacement
36 conductors or structures shall comply with the terms and conditions of the
37 applicable existing certificate of environmental compatibility.

38 [C. A UTILITY MAY REPLACE AN EXISTING PLANT WITH A REPLACEMENT
39 PLANT OR CONSTRUCT A NEW PLANT IMMEDIATELY ADJACENT TO AN EXISTING PLANT
40 WITHOUT FILING FOR OR RECEIVING A NEW CERTIFICATE OF ENVIRONMENTAL
41 COMPATIBILITY FOR THE NEW OR REPLACEMENT PLANT IF ALL OF THE FOLLOWING
42 CONDITIONS ARE MET:

43 1. THE UTILITY PROVIDES TO THE COMMISSION THIRTY DAYS' WRITTEN
44 NOTICE AND HOLDS AT LEAST ONE PUBLIC COMMENT SESSION IN THE COUNTY WHERE
45 THE EXISTING PLANT IS LOCATED.

46 2. THE NEW OR REPLACEMENT PLANT IS LOCATED ON OR IMMEDIATELY
47 ADJACENT TO THE SITE OF A PLANT THAT HAS PREVIOUSLY RECEIVED A CERTIFICATE

1 OF ENVIRONMENTAL COMPATIBILITY PURSUANT TO THIS ARTICLE OR THAT WAS IN USE
2 OR AUTHORIZED BEFORE AUGUST 13, 1971.

3 3. THE AGGREGATE NAMEPLATE RATING OF ALL PLANTS THAT WILL BE
4 LOCATED ON AND IMMEDIATELY ADJACENT TO THE SITE AFTER CONSTRUCTION WILL BE
5 EQUAL TO OR GREATER THAN THE AGGREGATE NAMEPLATE RATING OF ALL EXISTING
6 PLANTS LOCATED ON AND IMMEDIATELY ADJACENT TO THE SITE BEFORE
7 CONSTRUCTION.]

8 Enroll and engross to conform

9 Amend title to conform

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